RESOLUTION MSC.553(108)
(adopted on 23 May 2024)

AMENDMENTS TO THE INTERNATIONAL CODE ON THE ENHANCED PROGRAMME OF INSPECTIONS DURING SURVEYS OF BULK CARRIERS AND OIL TANKERS, 2011 (2011 ESP CODE)

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

NOTING resolution A.1049(27), by which the Assembly adopted the International Code on the Enhanced Programme of Inspections during Surveys of Bulk Carriers and Oil Tankers, 2011 ("the 2011 ESP Code"), which has become mandatory under chapter XI-1 of the International Convention for the Safety of Life at Sea, 1974 ("the Convention"),

NOTING ALSO article VIII(b) and regulation XI-1/2 of the Convention concerning the procedure for amending the 2011 ESP Code,

HAVING CONSIDERED, at its 108th session, amendments to the 2011 ESP Code, proposed and circulated in accordance with article VIII(b)(i) of the Convention:

1 ADOPTS, in accordance with article VIII(b)(iv) of the Convention, amendments to the 2011 ESP Code the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the said amendments shall be deemed to have been accepted on 1 July 2025, unless, prior to that date, more than one third of the Contracting Governments to the Convention or Contracting Governments the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have notified the Secretary-General of their objections to the amendments;

3 INVITES Contracting Governments to the Convention to note that, in accordance with article VIII(b)(vii)(2) of the Convention, the amendments shall enter into force on 1 January 2026 upon their acceptance in accordance with paragraph 2 above;

4 REQUESTS the Secretary-General, for the purposes of article VIII(b)(v) of the Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the annex to all Contracting Governments to the Convention;

5 ALSO REQUESTS the Secretary-General to transmit copies of this resolution and its annex to Members of the Organization which are not Contracting Governments to the Convention.

ANNEX

AMENDMENTS TO THE INTERNATIONAL CODE ON THE ENHANCED PROGRAMME OF INSPECTIONS DURING SURVEYS OF BULK CARRIERS AND OIL TANKERS, 2011 (2011 ESP CODE)

ANNEX A
CODE ON THE ENHANCED PROGRAMME OF INSPECTIONS DURING SURVEYS OF BULK CARRIERS

Part A
Code on the enhanced programme of inspections during surveys of bulk carriers having single-side skin construction

Annex 5
Procedures for approval and certification of a firm engaged in thickness measurement of hull structures

2 Procedures for approval and certification

Auditing of the firm

1 Paragraph 2.2 is replaced by the following:

"2.2 Upon reviewing of the documents submitted with satisfactory results, the firm shall be audited by the Administration in order to ascertain that the firm is duly organized and managed in accordance with the documents submitted and is capable of conducting thickness measurement of the hull structure of ships."

Part B
Code on the enhanced programme of inspections during surveys of bulk carriers having double-side skin construction

Annex 5
Procedures for approval and certification of a firm engaged in thickness measurement of hull structures

2 Procedures for approval and certification

Auditing of the firm

2 Paragraph 2.2 is replaced by the following:

"2.2 Upon reviewing of the documents submitted with satisfactory results, the firm shall be audited by the Administration in order to ascertain that the firm is duly organized and managed in accordance with the documents submitted and is capable of conducting thickness measurement of the hull structure of ships."

ANNEX B
CODE ON THE ENHANCED PROGRAMME OF INSPECTIONS DURING SURVEYS OF OIL TANKERS

Part A
Code on the enhanced programme of inspections during surveys of double-hull oil tankers

Annex 8
Procedures for approval and certification of a firm engaged in thickness measurement of hull structures

2 Procedures for approval and certification

Submission of documents

3 The chapeau of paragraph 2.1 is replaced by the following:

"2.1 The following documents shall be submitted to the Administration for approval:"

Auditing of the firm

4 Paragraph 2.2 is replaced by the following:

"2.2 Upon reviewing of the documents submitted with satisfactory results, the firm shall be audited by the Administration in order to ascertain that the firm is duly organized and managed in accordance with the documents submitted and is capable of conducting thickness measurement of the hull structure of ships."

Part B
Code on the enhanced programme of inspections during surveys of oil tankers other than double-hull oil tankers

Annex 7
Procedures for approval and certification of a firm engaged in thickness measurement of hull structures

2 Procedures for approval and certification

Submission of documents

5 The chapeau of paragraph 2.1 is replaced by the following:

"2.1 The following documents shall be submitted to the Administration for approval:"

Auditing of the firm

6 Paragraph 2.2 is replaced by the following:

"2.2 Upon reviewing of the documents submitted with satisfactory results, the firm shall be audited by the Administration in order to ascertain that the firm is duly organized and managed in accordance with the documents submitted and is capable of conducting thickness measurement of the hull structure of ships."